

When an out-of-state plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for requisite showing of indigency that plaintiff must make in order to obtain waiver of security for costs, and it ultimately remains within the trial court's discretion to determine whether to grant waiver. (*Alshafie v. Llande* (2009) Cal.App.4th 421, 434.) In *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, the court states, "not only must the courts exempt poor people entirely, but they may have to reduce the security bond required for middle income litigants, as well. If the bond is set high enough to fully protect the in-state defendant, it may be higher than middle income out-of-state plaintiffs can afford – and thus deprive them of their day in court. (*Id.* at fn. 34.)

Based on the foregoing, the Court **GRANTS** Plaintiff's request for a waiver and excuses her from the requirement of posting an undertaking.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME vs WALMART INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

This is a negligence and products liability action. On 4/1/2025, Irma Padilla Adame, Angel Artemio Avila Padilla, Anthony Avila Padilla, by and through his guardian ad litem, and the Estate of Marco Antonio Avila Solis (collectively "Plaintiffs"), filed their complaint against Walmart, Inc. ("Walmart"), Wardini H.A. Company ("Wardini"), and Paccar, Inc.² ("Paccar"). The complaint asserts the following causes of action: (1) premises liability (against Walmart); (2) negligence (against Walmart and Wardini); and (3) product liability (against Paccar).

The lawsuit arises out of a 12/9/2024 incident occurring at Walmart's distribution center located at 4100 Hamner Avenue, Eastvale, California, resulting in Marco Antonio Avila Solis' death ("Decedent"). (Complaint, ¶ 13.) Decedent worked as a truck driver, employed by Wardini, to transport trailers using a Kenworth T680 tractor unit that Decedent owned. (*Id.* at ¶ 14.) While attempting to complete his "work assignment," Decedent became trapped between the tractor and an adjacent trailer and perished. (*Id.*) The complaint alleges that the premises was dangerous because there were too many trucks and trailers to navigate and handle, improper supervision and procedures on site, and vehicles being left unattended. (*Id.* at ¶ 15.) Regarding Paccar, the complaint alleges the tractor was not reasonably safe as designed, manufactured, distributed, and/or sold. (*Id.* at ¶ 31.)

Now, Paccar moves for a protective order in response to a notice of deposition served by Plaintiff for a person most knowledgeable. Paccar takes issue with Plaintiffs' failure to identify the alleged defect with the T680 Tractor in written discovery and argues that this failure makes the scope of the PMK deposition overbroad. Paccar

² Erroneously sued as "Paccar Inc dba Kenworth Truck Company." References in the complaint to "Kenworth" should be read as references to Paccar.

states that the failure to specifically identify a victim violates the CCP § 2025.230 which requires the notice to describe the matters for examination with reasonable particularity. Paccar also argues there is significant overlap with the jurisdictional deposition.

In opposition, Plaintiffs argue the jurisdictional deposition was for a specific purpose and should not have any impact on this deposition. Plaintiffs also argue Paccar is trying to improperly force an evidentiary burden of proof onto discovery.

In reply, Paccar argues Plaintiffs' opposition confirms the inability to identify the defect with specificity. Paccar argues they are not requiring Plaintiff to prove their case, but seek clarification that allows them to properly prepare the witness to be deposed.

ANALYSIS

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order." (CCP § 2025.420(a).) "The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or any other affected natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (*Id.* at § 2025.420(b).) The moving party has the burden of establishing good cause for a protective order. (*Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) "[B]road allegations of harm, unsubstantiated by specific examples or articulated reasoning" are insufficient. (*Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 318 (internal quotation marks and quotation omitted).) "The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order." (*Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 528.)

First, a motion for protective order must be accompanied by a meet and confer declaration under CCP § 2016.040. (CCP §§ 2017.020, 2025.420(a), and 2019.030(a).) Effective 1/1/2026, CCP § 2016.040(a) requires that any meet and confer declaration in support of a motion reflect a reasonable, good faith attempt to resolve the issues either in person, by telephone, or by videoconference. Here, the meet and confer requirement is satisfied via several emails and a telephone call. (Declaration of Tarik Shoukeh, ¶¶ 3-10.)

The issue here is Paccar's motion is based on the argument that Plaintiff has failed to identify the specific manufacturing defect alleged in their complaint, either in written discovery or in response to Paccar's meet and confer. While Paccar attempts to argue they are not requiring Plaintiff to prove their case, effectively they are. Paccar's argument that, "Plaintiffs' admitted inability to identify what allegedly was defective does not permit them to shift to Paccar the burden of preparing corporate testimony concerning virtually every potentially relevant aspect of the T680 model..." (Paccar's Memorandum of Points and Authorities, p. 7:22-25.) But that is exactly what discovery is. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery admissible evidence." (CCP §

2017.010.) The complaint alleges manufacturing and design defects, including issues with the braking system. (Complaint, ¶¶ 17-18.) The topics listed in the notice are reasonably related to these allegations and discovery is the time for Plaintiffs to investigate whether there were any such defects with the T680. (Declaration of Tarik Shoukeh, Exhibit 8.) The categories otherwise sufficiently describe the potential topics of testimony.

Moreover, the burden is on Paccar to show that the undue burden of discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (*Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.) Paccar fails to provide a specific factual showing as to the quantum of work required to respond required to support an argument of an undue burden. (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) The fact that there may be some overlap with the jurisdictional deposition is not sufficient.

For these reasons, the court DENIES the motion.

If the party properly asks for monetary sanctions the court “shall” impose a monetary sanction against the losing party on a motion for protective order unless it finds that party made or opposed the motion “with substantial justification” or other circumstances make the sanction “unjust.” (CCP § 2023.030.) This motion was made without substantial justification given the unreasonable demand for Plaintiffs to identify a specific defect before proceeding with the deposition. Plaintiffs request a “reduced” \$2,000 in sanctions based on 9 hours of attorney time at \$300/hour. This amount is reasonable and the court awards the amount requested.